

Court No. - 29

Case :- WRIT - C No. - 8828 of 2021

Petitioner :- Sultan Khan

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Kamesh Kumar Arya

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

As prayed by learned counsel for the petitioner, put up as fresh on 5.4.2021.

Order Date :- 18.3.2021

Rahul Dwivedi/-

Court No. - 9

Case :- WRIT - C No. - 8828 of 2021

Petitioner :- Sultan Khan

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Kamesh Kumar Arya

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Rajesh Yadav

Hon'ble Sanjay Yadav,Acting Chief Justice

Hon'ble Prakash Padia,J.

Matter taken up through video conferencing.

The mobile of learned counsel for the petitioner is switched off. In view whereof, let this matter be posted after four weeks as fresh.

It is informed on behalf of Respondents no. 2 and 3 that presently Shri Rajesh Yadav has been engaged as the counsel.

Office is directed to reflect his name in the cause list as counsel for the respondents no. 2 and 3.

Order Date :- 7.6.2021

Kirti

(Prakash Padia, J) (Sanjay Yadav, ACJ)

Court No. - 39

Case :- WRIT - C No. - 8828 of 2021

Petitioner :- Sultan Khan

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Kamesh Kumar Arya

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Rajesh Yadav

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

No one has put in appearance on behalf of the petitioner. Sri Rajesh Yadav, learned Advocate for the respondent no.2 and learned Standing Counsel for the State-respondents are present.

The present writ petition has been filed with the following reliefs:

"Issue a writ, order or direction in the nature of mandamus commanding the respondent to correct the bill dated 09.10.2020 and also restore/connect the connection of the petitioner. Otherwise the petitioner shall suffer irreparable loss and injury."

From a perusal of the averments in the writ petition, it appears that the petitioner is raising a dispute with regard to the bill dated 09.10.2020. It is stated that by the notice dated 15.10.2020, the electricity connection was sought to be disconnected by the respondent on the ground that certain dues remained unpaid. Further, submission is that a first information report had been lodged against the son of the petitioner under section 135 of the Electricity Act, 2003.

Be that as it may, the dispute is with regard to the electricity bill dated 09.10.2020 and the contention of the petitioner is that he has a valid connection and the said bill is based on the incorrect facts.

The issues being raised herein require factual inquiry.

The petitioner has a remedy of approaching the competent authority under the relevant provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

The writ petition is, accordingly, ***dismissed***.

Order Date :- 8.7.2021

P Kesari